

Vaishnavi vs Akil Vishnu on 11 August, 2025

Mat.A No,618 of 2025

2025 : KER : 60312

Iet TRE HIGH COURT OF KERALA AT ERNAKULAM
PRESENT
THE HONOURABLE in. the DEPUTY REGISTRAR
&

THE HONOURABLE MRS. JUSTICE M.B. SNEHATHA

MONDAY, THE 11th DAY OF AUGUST 2025 / 20th SRAVANA, 1947

RAT.APEAL NO. 618 OF 2025
AGAINST THE -UDGNT IN OPEDN No.495 of 2024 of FNMII.I
CunT, pj
ApPEAL/PETITIONER:

VAISHRAVI, AGED 24 YEARS
D/O. ENII.KunmR, AZHAKKAMCD : ITHu House ,
KAIIAKKARY P. O, KANAKKARY VII+IAGE,
KOTTAYAM DISTRICT, PIN - 686632
BY JOYS.
SRI . PAUL K .VREHESE
sim . A . A . GRETHA
SHRI.HYBIN JOSH P.P.
SHRI . dERIN roy
SHRI . SAVIO AVcOSTINE

RESPONDENTS/RESPONDENTS:

AKII. VISENU, AGED 35 YEARS
s/O. MoluEN:AN emNTHUDATHII. House ,
KENAKKZuRY P.O . KANAKKAR VII.LACE
KOTTAYAM DISTRICT, PIN - 686632

SHELLY BABU, AGED 55 YEARS
w/O BABU Kuzt]IKKZITTII, House, KANAKKany.p.O,
ENAKKARY VILIAGE, KOTTAYAM DISTRICT, PIN - 686632
8% revs.
SRI . A . K . HARIDAS
SHRI . I . p . pRADREPKtmR

THIS MTRIMONIAL AppEAL. HAVING CODE up FOR HEARING ON
7.08.2025, THE count ON 11.8.2025 DE,IVERED THE FOE.I,OWING:
Mat.A No.618 of 2025

2025 : KER : 60312

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--111-I---11111-111111--I---11-----,I-I--I- Dated, this the 11th August, 2025 JUDGMENT M.B.Snehalatha, J Challenge in this appeal is by the wife against the judgment and decree of the Family Court, Pala which declined the relief of divorce sought by her under Section 13(1)(i)(ia) of Hindu Marriage Act, 1955.

2. Today, when this appeal came up for hearing, the learned counsel appearing for both sides submitted that the entire disputes between the parties have been settled in the mediation held under the aegis of Mediation Centre, Ernakulam and a memorandum of agreement has been filed before this Court.

3. We have examined the memorandum of agreement and we notice that it has been signed by the parties and subscribed by their counsel. The terms of the agreement are lawful and therefore, the settlement arrived at by the parties is accepted.

4. In view of the settlement arrived at by the parties, appellant and respondent have filed a petition under Section 138 Mat.A No.618 of 2025 2025 : KER: 60312 of` the Hindu Marriage Act, 1955 for dissolution of their marriage by mutual consent, wherein they have stated that they have mutually agreed and decided for dissolution of marriage voluntarily and there is no collusion. Further it is stated that there is no coercion or undue influence from any corner in filing the petition under Section 138 of the Hindu Marriage Act.

5. The learned counsel also took our attention to the decision of this Court in Mat.Appeal Nos.751/2010 and 297/2005 wherein on a similar set of facts, the Division Bench this Court granted divorce by mutual consent under Section 10A of the Divorce Act based on a compromise entered into between the parties during the pendency of the Matrimonial Appeal.

6. Both parties have affirmed that the entire disputes between the parties have been settled in terms of the memorandum of agreement filed by the parties.

7. In terms of the settlement, appellant paid an amount of €1,00,000/- to the 1st respondent towards the value of thalimala.

8. We are convinced that the marriage between the spouses who are Hindus has been irretrievably broken down and there is no possibility of reunion and divorce is the viable option and all the attempts of reunion have been failed. We are also Mat.A No.618 of 2025 2025 : KER: 60312 convinced that the parties have voluntarily filed the petition under Section 138 of the Hindu Marriage Act and there is no collusion between the parties and this Court is satisfied that the consent was not obtained through fraud or coercion.

9. We are of the view that this is a fit case to grant divorce by mutual consent on the application filed

under Section 138 of the Hindu Marriage Act by waiving the cooling off period as the marriage is irretrievably broken.

10. Accordingly, I.A.No.2/2025 filed under Section 138 of the Hindu Marriage Act is allowed.

11. The marriage between the appellant and the respondent is dissolved by a decree of divorce by mutual consent under Section 138 of the Hindu Marriage Act, 1955 with effect from today.

The parties are directed to act implicitly in terms of the memorandum of agreement and Joint memo and shall comply all the terms therein, which do form part of the judgment.

Sd/-

DEVAN RAMACHANDRAN JUDGE Sd/-

M.B.SNEHALATHA JUDGE ab Mat.A No.618 of 2025 5 2025 : KER: 60312 APPEu5H oF enr.zLFpml 618/2025 PETITIONER ANNEXURES Annexure 1 ORIGINAL oF THE LETTER GIVEN BY STATE PUBL. I C INFORAT I ON OF T I CER AND SHO EnyRAvll]ANGADu poLlcE sTAlloN KOTTArAM To THE APPEIANT DATED 23/06/2025 RESPONDENTS ANNEXURES : NIL BEFOFtE [rmE HOREouFEABLE HF.GF+ couRT a.F KEFEALA AT ERNAKULAM Mat.Ar)Deal NOE 618 of 2025 Vaishnavi Appellant Vs. Akil Vishnu & Another Respondent MEMORANDRUM OF AGREEMENT UNDEF` SECTION 89 oF THE CODE OF CIVIL PROCEDURE READ WITH RULES 24 a 25 oF THE KERALA CIVIL PROCEDURE (MEDIATION), RULES, 2008:

1.The appett'ant and'. first resp@nderl.t agree th`at th-ey sha-F`E joint[y` a. fife a petition u/s 138 of Hindu Marriages Act before the Hon'ble High Court of Kerala.-today.

2.The entire documents ie, Passport, Birth Certificate, Vaccination Book Of Yaishn.avi & Vishnupr].ya {S]'ster) Licence, Aadhar C-art, .Pan Card , School Certificates/Reports, College Certificates etc belonging to the appellant received by the appellant from the 1st respondent as per list attached.

3.The cri-mi'fta+- case registered. try- Kuravitangad PoEt.ce Stati`oFT u-rider Crime No,337/2022 now pending as Sφ.No. 565/2022 Before the Fast Track Court-Erattupetta u/s 376 & 498 A 34 IPC shall be quashed only after passing Decree of divorce by mutual consent.

4. The -GOP filed b.y the 1st 'Resp.ondent before the fan-fry Court, Ettumannor as GOP No.145/2025 shall be withdrawn by the 1st respondent.

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5. Respondents shall file CrI.MC before the Hon'ble High Court in which the appellant shall file affidavit of no objection to quash proceedings as against the respondents.

6. Herein after both parties shall not file any cases against other party both civil as well as criminal before any court in relation to their matrimonial ties.

7. The appellant and the respondents 1 and 2 shall not in any way harass, threaten, defame or do any acts causing any kind of mental or physical damages to each other or any of their family members and shall not do any act including defamatory words against the appellant or her family members in any manner including Whatsapp, Face book, directly or indirectly including the child.

8. The appellant has no objection for the respondent getting the custody of the child if permitted by law and the respondents shall not in any way involve the appellant in any case or proceedings for the custody of the child and also the appellant will not interfere in any manner and will not claim for the custody of the child in future.

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Responderlts

Vaishnavi

Akil Vishnu

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9. The appellant agreed to give an amount of Rs.1,00,000/- (Rupees One lakh only) towards the value of the Thalimala. Out of the said

amount the Appellant has paid an amount Rs.50,000/- (Rupees Fifty thousand only) and also paid the balance of Rs.50,000/- (Rupees Fifty thousand only) by G-Pay to the mobile No. of the 1st Respondent 9633749130 as such the 1st Respondent has no further claim as against the Appellant in relation to their matrimonial ties.

10. Both the parties are now fully aware that the child has been handed over to CWC and adopted by somebody.

Dated this the 7th day of August, 2025.

v#
Appellant

FLespondents

Akil Vishnu

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List of Documents handed over to the Appellant by the 1st Respondent

1. Pass Port
2. Aadhar Card
3. Pan Card
4. Voter I-D
5. Aadhar Card of sister of Appellant
6. Tax Receipt
7. School Certificate 8- Mother and Child Card of Appellant
9. Driving License.
10. N.S.S. Certificate 11 Vaccination Card.

Apart from the documents mentioned above, all documents and copies of appellants has been handed over by the 1st respondent.

Appellant A

Respondent

Akil Vishnu

Counsel. for the Appeftarfe
Adv.Paul K.Varghese

Counsel` for the Respon

This settlement agreement is authenticated by f,`i`rii:;. `{.#-';i=i:-i.`•t'. ` Adv , Reziya p.A(M ed iat
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